

Amendment No. 1 to HB2255

Lafferty
Signature of Sponsor

AMEND Senate Bill No. 2562

House Bill No. 2255*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 4-8-301, is amended by adding the following as a new subsection:

(d) All vacancies must be filled for the balance of an unexpired term.

SECTION 2. Tennessee Code Annotated, Section 4-31-103(c), is amended by deleting subdivision (1) and substituting.

(1) Its membership consists of the governor, the secretary of state, the state treasurer, the comptroller of the treasury, and the commissioner of finance and administration, and their successors in office from time to time, by virtue of their incumbency in such offices and without further appointment or qualification, together with one (1) member who must be appointed by the speaker of the senate and one (1) member who must be appointed by the speaker of the house of representatives. Each appointed member serves for a period of two (2) years, subject to reappointment, or until such member's successor is duly appointed and qualified.

SECTION 3. Tennessee Code Annotated, Section 43-13-103(d), is amended by adding the following to the end of the subsection:

All vacancies must be filled for the balance of an unexpired term.

SECTION 4. Tennessee Code Annotated, Section 54-3-113(c), is amended by adding the following to the end of the subsection:

All vacancies must be filled for the balance of the unexpired term.

SECTION 5. Tennessee Code Annotated, Section 63-1-179(b)(4)(B), is amended by adding the following to the end of the subdivision:

All vacancies must be filled for the balance of the unexpired term.

SECTION 6. Tennessee Code Annotated, Section 70-1-201(b)(1), is amended by deleting "each member" and substituting "each member appointed by the governor".

SECTION 7. Tennessee Code Annotated, Section 70-1-201(b)(3), is amended by deleting "confirmed" and substituting instead "appointed as provided in subsection (a) or confirmed".

SECTION 8. Tennessee Code Annotated, Section 70-1-201(b)(4), is amended by deleting the subdivision and substituting instead:

If the general assembly is not in session at the time a member is appointed to fill a vacancy not resulting from the expiration of a term, then the new appointee shall serve for the term appointed, unless such appointment must be confirmed pursuant to subdivision (b)(1) and is not confirmed within sixty (60) calendar days after the general assembly next convenes in regular session following such appointment.

SECTION 9. This act takes effect upon becoming a law, the public welfare requiring it.